

25STCV21043 25STCV21043

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-08-06

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Case Number: 25STCV21043 Hearing Date: August 6, 2026 Dept: 730

TENTATIVE

The

request for default judgment submitted on November 14, 2025, is DENIED for the following reasons:

The

declaration submitted in support of default judgment does not provide sufficient evidence for the Court to enter judgment. Plaintiff Resolution Economics, LLC ("RE") submitted the Declaration of Mike Hall, RE's CFO, in support of default judgment. Hall attested parties entered into an agreement, attached as "Exhibit 1" for RE to provide products and services in return for Defendant Epicentrx, Inc. ("Epicentrx") paying incurred fees. (Hall Decl. ¶¶ 5-6, Ex. 1.) The contractual agreement was signed by parties on August 22, 2023, and August 23, 2023. (Hall Decl. ¶ 5, Ex. 1.) All product and services were allegedly provided after signing the contract. (See Hall Decl. ¶ 6; "Thereafter [entering into a written agreement], Defendant received products and services from Plaintiff totaling in excess of the sum of \$301,220.68.") However, the date of breach allegedly occurred before the agreement was even signed. Hall attested "[o]n or about July 7, 2023, Defendant defaulted on its obligations by failing to make the payments due and demanded by Plaintiff." (Hall Decl. ¶ 8.) Epicentrx could not have defaulted on a written contract more than one month prior to signing said contract. The evidence provided does not support entry of default for breach of contract.

RE

requests the Court issue interest from December 6, 2023, which is neither the alleged date of breach nor the day the complaint was filed. RE provides no

explanation for this date; the Court is unaware of any basis to calculate interest from this date.

The OSC re entry of default judgment is continued to the court's next available date in approximately 60 days. No later than 15 days before the new hearing date, RE is to submit a new default judgment package correcting these defects. Failure to do so may result in the imposition of sanctions, including monetary sanctions and/or dismissal.